

FEDERAL MARITIME COMMISSION

Docket No. 23-13

USL AUTO EXPORTING INC.,

COMPLAINANT,

v.

EASY SHIPPING CORPORATION,

RESPONDENT.

COMPLAINANT'S MOTION TO COMPEL DISCOVERY

1. Introduction

Complainant is filing this Motion to Compel Discovery under Docket No. 23-13 - *USL Auto Exporting Inc. v. Easy Shipping Corporation*, pursuant to 46 C.F.R. § 502.150(a) and (b). As per these regulations, Complainant had made diligent efforts to confer with the Respondent in an attempt to resolve this matter without the Commission intervention. Despite these attempts, compliance has not been achieved.

2. Legal Standards

Pursuant to 46 C.F.R. § 502.150(a), a party may apply for an order compelling discovery or disclosure upon reasonable notice. Furthermore, 46 C.F.R. § 502.150(b) requires that such a motion be accompanied by a statement that the movant has in good faith conferred or attempted to confer with other affected parties to resolve the dispute without court action.

3. Background:

On April 1st, 2024, the Complainant issued formal Discovery Requests, including Document Production and Interrogatories, to the Respondent. An agreement was made for these documents to be returned by April 19th to expedite the process. However, the Respondent did not meet this agreed deadline.

Subsequently, on April 22nd, 2024, I followed up via email, emphasizing the necessity of returning the requested documents within the standard 30-day legal period. To date, the Respondent has failed to provide the requested documentation.

4. Efforts to Confer:

Following the missed deadline, the Complainant attempted to engage with the Respondent multiple times via emails, seeking to resolve the issue amicably and ensure timely compliance with the discovery requests. Regrettably, these efforts have not resulted in substantive progress or document production.

5. Relief Requested:

Given the Respondent's non-compliance, the Complainant respectfully requested that the Commission issue an order compelling the Respondent to produce the requested documents within 5 days from the date of the Commission's order.

6. Potential Motion to Extend The Discovery Period

The Complainant may seek further judicial intervention, including a motion to extend the discovery period to obtain these documents from CMA CGM. The Complainant requires two

bills of lading that are in possession of both the Respondent and third parties, specifically CMA CGM. If the Respondent fails to provide the necessary documents, the Complainant will seek further a motion to extend the discovery period to obtain these documents from CMA CGM.

Respectfully submitted,

DATED: May 7, 2024

USL AUTO EXPORTING INC.

By: s/ANIS HOUSSEIN

ANIS HOUSSEIN

Vice President for COMPLAINANT

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on the 9th day of May 2024, a true and correct copy of the foregoing COMPLAINANT'S MOTION TO COMPEL DISCOVERY was served via electronic mail on:

EASY SHIPPING CORPORATION
(fracati@rafatilegal.com)

s/ANIS HOUSSEIN

Anis Houssein

**Vice President for COMPLAINANT
USL AUTO EXPORTING INC.,**